

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

SIERRA LAKES PROFESSIONAL PARK, LLC,

Plaintiff,

v.

FRANKLIN DIXON; BEDNAHRIN DIXON,

Defendants.

Case No.: CIVSB2427600

**[TENTATIVE] ORDER
GRANTING MOTION FOR
SUMMARY JUDGMENT FILED
BY PLAINTIFF SIERRA LAKES
PROFESSIONAL PARK, LLC**

I. INTRODUCTION

On September 10, 2024, Plaintiff Sierra Lakes Professional Park, LLC, filed a Complaint for Breach of Lease Guaranty against Defendants Franklin Dixon and Bednahrin Dixon. Plaintiff alleges one cause of action for breach of guaranty. The Complaint arises out of a commercial lease that Defendants guaranteed. On June 17, 2025, Defendants answered.

Now before the Court is Plaintiff's motion for summary judgment. Plaintiff seeks a judgment against Defendants on the guaranty in the total amount of \$132,587.64, which is what it asserts is owed under the lease, including interest and other costs. Defendants have not

opposed. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. WHY SUMMARY JUDGMENT SHOULD BE GRANTED

With respect to breach of a guaranty, a surety or guarantor is one who promises to answer for the debt, default, or miscarriage of another. (*Central Building, LLC v. Cooper* (2005) 127 Cal.App.4th 1053, 1058, citing Civ. Code, § 2787.) The guarantor's obligation rests on the contract of guaranty. (*Neiderer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1505.) A contract of guaranty provides a separate and independent obligation on the guarantor from that which binds the principal debtor. (*Talbott v. Hustwit* (2008) 164 Cal.App.4th 148, 151.) To establish liability for breach of a written guaranty, the elements for a breach of contract must be demonstrated.

Here, Plaintiff presents the following facts. It entered into a lease on October 14, 2009 with an initial tenant for the premises at issue. The original lease was amended several times. Under an Assignment and Assumption of Lease, effective June 1, 2016, FND Enterprises (Tenant) assumed all obligations of the tenant under the original lease, as amended, and entered into possession. (UFs 1-3.)

In conjunction with the Assignment, Defendants entered into a written Guaranty of Lease under which they guaranteed each and all of Tenant's covenants and obligations under the Lease. Defendants are (or were) officers of Tenant FND Enterprises. Under Section 1 of the Guaranty, Defendants "unconditionally and irrevocably" guaranteed: "(i) the prompt payment by Tenant of all Minimum Annual Rent, Additional Rental, and all other sums payable by Tenant under the Lease, (ii) the faithful and prompt performance by Tenant of each and every term, condition, and covenant of the Lease to be kept and performed by Tenant...." Under Section 2 of the Guaranty, Defendants promised and agreed that their guaranty of obligations under Section 1 were "separate, independent of, and in addition to the obligations and undertakings of Tenant pursuant

to the Lease” and that “a separate action or actions may be brought and prosecuted against [Defendants] whether or not [an] action is brought against Tenant ... and independent of any action at law or in equity brought against Tenant.” (UFs 4-7.)

Plaintiff recounts the Tenant’s obligations under the Lease that support the amounts Plaintiff claims is owed, including an obligation to pay minimum annual rent, additional rent, redeliver the property in good order and state of repair, ordinary wear and tear excepted, and in a neat and clean condition, free of debris. (UFs 8-11.) The Lease was set to expire on December 31, 2024, but the Tenant defaulted on its obligations under the Lease by failing to pay minimum and additional rent due on January 1, 2024. After the Tenant defaulted, Plaintiff sent a three-day notice to pay rent or quit and ultimately brought an unlawful detainer action in San Bernardino County Superior Court, Case No. LLTVA2401255. On April 12, 2024, the Court entered a judgment for possession in the UD action and declared the lease canceled and forfeited. After entry of Judgment, Plaintiff recovered possession and made efforts to re-lease to another tenant through completion of the lease on December 31, 2024, but was unable to locate a replacement tenant before the lease expired. (UFs 12-17.)

The amount of unpaid rent due under the lease from January 1, 2024 to December 31, 2024 is \$104,108.28. After applying the security deposit of \$5,240, \$98,868.28 in rent is owed. In addition, under Section 19.3 of the Lease and Civil Code section 1951.2, Plaintiff is entitled to interest “at the maximum lawful rate” of 10 percent on the unpaid rent. As calculated, this amounts to daily interest of \$27.09 per day. Plaintiff calculates that from January 1, 2025 to August 25, 2026 is 601 days; therefore, Plaintiff is entitled to at least \$16,281.09 in interest on the unpaid rent, for a total of \$115,149.37 for outstanding rent and interest. (UFs 18-22.)

Plaintiff also incurred multiple expenses in restoring the premises and performing maintenance items related to the storefront door, locks, signage, and grease trap, which were Tenant's responsibilities under the Lease. For this, Plaintiff seeks \$13,150.42 in restoration costs. Plaintiff also spent \$4,287.85 in attorneys' fees and costs related to removing the Tenant and securing the premises. (UFs 23-24.)

As a result, the combined total of rent, interest, restoration costs, and additional costs totals \$132,587.64, which neither Tenant nor Defendants have paid despite Plaintiff's demand. (UF 25.)

Plaintiff submits evidence in support of UFs 1-25 on the Declaration of Jessica Hernandez, Manager-Commercial Property Administrator for Lewis Management Corp., the property agent responsible for leasing matters on the property. Hernandez states she is the custodian of Plaintiff's business records, familiar with, and reviewed the documents, correspondence, lease agreements, and other records related to the premises. Hernandez establishes the foundation for admission of business records and sufficient foundation to testify to amounts owed on the Lease and Guaranty at issue. (Hernandez Decl. ¶¶ 1-2.) Hernandez's testimony supports statements related to the Lease, Assignment, Guaranty, Tenant's default, UD action and judgment, and amounts owed under the Lease and Guaranty. (Hernandez Decl. ¶¶ 3-20 and Exhs. A-I.)

In UFs 1-25, Plaintiff meets its initial burden by providing competent evidence that there was a Lease Guaranty between Plaintiff and Defendants under which Defendants guaranteed the prompt payment by Tenant of rent, additional rent, and all other sums payable by Tenant under the Lease, the Tenant's default, Defendants' failure to perform under the Lease Guaranty, and Plaintiff's damages.

III. CONCLUSION

Plaintiff Sierra Lakes Professional Park's motion for summary judgment against Defendants Franklin Dixon and Bednahrin Dixon, which demonstrates damages in the total amount of \$132,587.64, is GRANTED. (UFs 1-25 and evidence cited in support, including Hernandez Decl. ¶¶ 1-20 and Exhs. A-I.)

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court